

25NNCV06136 25NNCV06136

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 25NNCV06136 Hearing Date: August 5, 2026 Dept: P

[TENTATIVE] ORDER GRANTING PLAINTIFF'S

MOTIONS TO COMPEL FORM INTERROGATORIES, SET ONE and GRANTING MONETARY SANCTIONS

I. INTRODUCTION

On

September 2, 2025, Plaintiff City of Pasadena ("Plaintiff" or "City") filed this action against Defendants Titan Disposal Corporation, Inc. and Bill Curren (collectively, "Defendants") arising from a September 27, 2023, motor vehicle collision in which Defendant Bill Curren allegedly backed a skiploader into a City vehicle operated by Plaintiff's employee, William Crum. Plaintiff asserts causes of action for motor vehicle negligence and breach of contract, seeking to recover workers' compensation benefits paid on behalf of its employee pursuant to Labor Code section 3852 and damages allegedly recoverable under the parties' indemnity agreement.

On June 30, 2026, City filed motions to compel Defendants to serve verified responses to Form Interrogatories, Set One. No oppositions have been filed. Because the motions involve identical facts, legal issues, and requested relief, the Court exercises its discretion to consolidate the motions for purposes of this ruling

II. LEGAL STANDARD

Under Code of Civil Procedure section 2030.290(a), if a party fails to respond to interrogatories, they waive any objections, including those based on privilege or work product protection. When a party does not provide timely responses, the propounding party is entitled to move for an order compelling

responses. Pursuant to Code of Civil Procedure section 2030.290(b), the Court must order the responding party to provide responses without objections.

III. ANALYSIS

Plaintiff moves to compel Defendants Titan Disposal Corporation, Inc. and Bill Curren to serve verified responses, without objections, to Form Interrogatories, Set One.

Here, Plaintiff served Form Interrogatories, Set One, on Defendants Titan Disposal Corporation, Inc. and Bill Curren on November 25, 2025. (Smith Decl., ¶ 2.) After neither Defendant timely responded, Plaintiff sent a demand letter on January 9, 2026. Defense counsel represented that verified responses, without objections, would be served by January 23, 2026. (Smith Decl., ¶ 3.) When no responses were received, Plaintiff again contacted defense counsel on February 2, 2026, advising that motions to compel would be filed if verified responses were not served by February 12, 2026. (Smith Decl., ¶ 4.) As of the filing of these motions, Defendants had not served any responses or requested any further extension of time. (Smith Decl., ¶ 5.) Defendants have not opposed the instant motions.

Based on the foregoing, the Court GRANTS the motions to compel responses to FROGs. Defendants Titan Disposal Corporation, Inc. and Bill Curren shall each serve verified responses, without objections, to Plaintiff's Form Interrogatories, Set One, within 30 days of notice of the Court's order.

IV. SANCTIONS

Code of Civil Procedure section 2030.290, subdivision (c), provides that the Court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel responses unless the Court finds substantial justification or other circumstances making sanctions unjust.

Here, Plaintiff requests monetary sanctions of \$1,250.00 against each Defendant and their counsel. According to counsel's declaration, the requested amount consists of three hours preparing the motions and an estimated two hours appearing at the hearing, billed at \$250 per hour. (Smith Decl., ¶¶ 6-7.)

Because Defendants failed to timely serve responses, necessitating these motions, and filed no opposition demonstrating substantial justification, the Court finds monetary sanctions appropriate. Although Plaintiff requests \$1,250.00 against each Defendant, the motions are substantially similar and required minimal additional work beyond preparing a single motion. The Court finds that 3 total hours for preparing both motions and appearing at the hearing is reasonable. At counsel's requested hourly rate of \$250.00, the Court awards Plaintiff \$750.00 in monetary sanctions.

Thus, the Court GRANTS \$750 in monetary sanctions against Defendant Titan Disposal Corporation, Inc, and Bill Curren. Monetary sanctions shall be payable within 30 days of notice of the Court's order.

V. CONCLUSION AND ORDER

The Court GRANTS

Plaintiff's motions to compel FROGs - Set One. Defendants are ordered to respond within 30 days of this order. The Court further GRANTS monetary sanctions in the amount of \$750.00 against Defendant Titan Disposal Corporation, Inc, and Bill Curren. Monetary sanctions shall be payable within 30 days' notice of this order.

Plaintiff is to give notice.

Dated: August 5, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT